



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9566 (EXTENSION)
FIRST REVISION March 14, 1989
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9566 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 13 1991

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

United Technologies Corp./Chemical Systems Div.
San Jose, CA

September 27, 1991



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1. United Technology Chemical Systems, San Jose, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a rocket motor for transportation in commerce subject to the requirements specified herein. This exemption authorizes the transportation, in temperature controlled equipment, of a rocket motor in packaging authorized by DOD, and in a propulsive state, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on an application from United Technology Chemical Systems dated April 15, 1988, and supplemental information dated December 12, 1988, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon and supplemental letter dated March 13, 1989.
3. HAZARDOUS MATERIALS (Descriptor and class). ORBUS-7S Rocket Motor assembly (P/N 92726, B20937), classed as Class B explosive.
4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket motor.
5. REGULATION AFFECTED. 49 CFR 173.88, 173.92, 177.834(L)(1).
6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is as described for Minuteman III/Stage III in the application for exemption and authorized in Department of the Air Force letter dated January 17, 1984. Special trailer with the following National Stock Number will be used: 1450-01-139-0286AH. These trailers are temperature controlled solely to facilitate proper functioning of the motor and other devices.

The following conditions apply to all shipments:

- a. Commodities identified above, properly packaged, may be shipped in or on highway vehicles equipped with heating and refrigerating apparatus operated by diesel or gasoline fuel. Any electrical apparatus in the lading space must be of non-sparking or explosion-proof type. There must be no combustion apparatus in the lading space, and no connection for return of air from the lading space to any combustion apparatus. The heating system must be such that no part of the lading will be heated to over 130°F. and must conform to 49 CFR 393.77.
- b. Shipments covered by this exemption are limited to those shipments for which temperature control is required to assure proper functioning of the motors or devices, and is not being required to preclude a transportation hazard developing from instability.
- c. When temperature control apparatus is operated by generator engines, fuel tanks for the generators must conform to construction

requirements of DOT Specification 51 for steel portable tanks. The shipper must arrange with the carrier for proper refueling of tanks and monitoring of temperature control apparatus when shipments are not accompanied by authorized representatives of the shipper.

8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. May 31, 1990.

Issued at Washington, D.C.:

84 Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAR 14 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

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